

Tribunal Defence Guide

This guide shows how to present the Section 13 file clearly if the tenant refers the notice to the tribunal.

The landlord relies on the comparable evidence in this file and says the proposed rent of £1285.00 per month should be judged against that market evidence, not against the size of the increase alone.

Challenge band: Moderate likelihood of challenge. Evidence band: Strong evidence.

If the tenant applies

If the tenant refers the notice to the tribunal before the proposed start date, review the application promptly and answer from the same evidence base used in this pack.

Keep the Form 4A notice, proof of service record, justification report, Tribunal Argument Summary, photos, EPC, safety documents, and any negotiation correspondence together in one hearing file.

What to file and bring

Bring the merged tribunal bundle, printed copies of supporting evidence, and a short chronology covering the tenancy start date, any earlier increase, and the proposed effective date.

Use the same band wording throughout: Moderate likelihood of challenge and Strong evidence.

How to explain the evidence

Explain why the chosen comparables are relevant, how each adjustment affects the monthly equivalent, and why any user override was applied.

If a point is weak or missing, acknowledge it briefly and return to the strongest nearby comparables rather than overstating the file.

Negotiation and settlement

Stand firm where the comparable evidence is current, consistent, and clearly supports the proposed figure.

Consider a small concession or later start date where the evidence is mixed or a condition point is fairly raised, but record any agreement in writing so it stays aligned with the notice file.

Keep your position consistent

Keep returning to the same market anchor: the proposal is based on 8 comparable two-bedroom properties used in the market calculation, with all listed within the last 90 days and all source-backed, not on a target percentage increase.

If challenged, refer back to the recorded comparable table and the adjustments already applied.

Describe the proposal as below the adjusted median market rent and keep the explanation tied to the Form 4A, proof of service, and justification report rather than speculation about what the tribunal may do.

Be ready to explain property condition, tenancy-period alignment, and how the earliest valid start date was calculated under the post-1 May 2026 rules.

If service is not valid or cannot be proved, the tribunal may reject or discount the notice file before considering market rent.